JUSTIA

LNU, ET AL. V. BLANCHE (9th Cir. 2026)

Court: U.S. Court of Appeals for the Ninth Circuit

Docket Number: 24-4790

Date Decided: June 3, 2026

Court Description: Attorney Discipline/Use of Artificial Intelligence. The panel issued an order imposing sanctions against two attorneys due to their filing of briefs containing multiple nonexistent cases, misattributed quotations, and gross misrepresentations of real cases, and due to their lack of candor in revealing that these fabrications and inaccuracies were the result of hallucinations by generative AI.

The panel explained that it was not imposing sanctions for the simple fact that the attorneys or their subordinates used generative AI. That is, the rules are not violated at the point of research and drafting, but at the point of signing and filing. If an attorney files a brief with cases or quotations that do not exist, or completely misrepresents what a real authority stands for, it generally does not matter if he pulled the hallucination or misrepresentation from the output of an artificial intelligence tool or from his own natural intelligence. However legal papers are prepared, and however legal technology develops, the court's procedural and ethical rules apply with equal force. Just as faithful adherence to those rules would prevent the submission of generative AI hallucinations, such adherence would also prevent the submission of similar human-generated errors. Here, it was the attorneys' signing and filing of briefs containing hallucinated fabrications and inaccuracies that violated procedural and ethical rules. The misconduct in this case did not end with the initial filing of the briefs. At every subsequent step—including a Motion to Correct, oral argument, the Response to the panel's Order to Show Cause, and more recent filings in other cases—the attorneys knowingly or recklessly made false statements to this Court. The attorneys each violated their duty of candor when they claimed that the nonexistent cases in the opening brief were the result of typographical or copy-paste errors. In circumstances such as these, the duty of candor requires a transparent disclosure of the source of the

errors. The panel stressed that when an attorney learns of any error in a filing—including generative AI hallucinations—he should immediately alert the court and opposing counsel of the error and disclose its source. If, in the Motion to Correct, the attorneys had disclosed that AI was used in the opening brief against firm policy and apologized for failing to check the brief, lesser sanctions may have been warranted. But that is not what they did. The gravity of discipline imposed, including monetary sanctions and the temporary suspension of practice before this court for six months, was owed to this repeated failure of candor.

This opinion or order relates to an opinion or order originally issued on November 4, 2025.

FOR PUBLICATION

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

MALKEET LNU; SUNITA RANI LNU; JAIVIN LOHAN, *Petitioners*, v. TODD BLANCHE, Acting Attorney General, *Respondent*, MIKE SINGH SETHI; WILLIAM ROUNDS, *Interested Parties*.	No. 24-4790 Agency Nos. A241-692-761 A241-692-762 A241-692-763 ORDER

Filed June 3, 2026

Before: Richard A. Paez, Carlos T. Bea, and Danielle J. Forrest, Circuit Judges.



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